

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

THIRD SECTION

CASE OF KIRSANOV AND OTHERS v. RUSSIA

(Applications nos. 43191/21 and 21 others –
see appended list)

JUDGMENT

STRASBOURG

21 March 2024

This judgment is final but it may be subject to editorial revision.



In the case of Kirsanov and Others v. Russia,

The European Court of Human Rights (Third Section), sitting as a Committee composed of:

Peeter Roosma*, President*,
Ioannis Ktistakis,
Andreas Zünd*, judges*,

and Viktoriya Maradudina, *Acting Deputy Section Registrar,*

Having deliberated in private on 22 February 2024,

Delivers the following judgment, which was adopted on that date:

PROCEDURE

1. The case originated in applications against Russia lodged with the Court under Article 34 of the Convention for the Protection of Human Rights and Fundamental Freedoms ("the Convention") on the various dates indicated in the appended table.

2. The Russian Government ("the Government") were given notice of the applications.

THE FACTS

3. The list of applicants and the relevant details of the applications are set out in the appended table.

4. The applicants complained of the disproportionate measures taken against them as organisers or participants of public assemblies. They also raised other complaints under the provisions of the Convention.

THE LAW

I. JOINDER OF THE APPLICATIONS

5. Having regard to the similar subject matter of the applications, the Court finds it appropriate to examine them jointly in a single judgment.

II. JURISDICTION

6. The Court observes that the facts giving rise to the alleged violations of the Convention occurred prior to 16 September 2022, the date on which the Russian Federation ceased to be a party to the Convention. The Court therefore decides that it has jurisdiction to examine the present applications (see *Fedotova and Others v. Russia* [GC], nos. 40792/10 and 2 others, §§ 68-73, 17 January 2023).

III. ALLEGED VIOLATION OF ARTICLE 11 OF THE CONVENTION

7. The applicants complained principally of disproportionate measures taken against them as organisers or participants of public assemblies, namely their arrest in relation to the dispersal of these assemblies and their conviction for administrative offences. They relied, expressly or in substance, on Article 11 of the Convention.

8. The Court refers to the principles established in its case-law regarding freedom of assembly (see *Kudrevičius and Others v. Lithuania* [GC], no. 37553/05, ECHR 2015, with further references) and proportionality of interference with it (see *Oya Ataman v. Turkey*, no. 74552/01, ECHR 2006-XIV, and *Hyde Park and Others v. Moldova*, no. 33482/06, 31 March 2009).

9. In the leading cases of *Frumkin v. Russia,* no. 74568/12, ECHR 2016 (extracts), *Navalnyy and Yashin v. Russia,* no. 76204/11, 4 December 2014 and *Kasparov and Others v. Russia,* no. 21613/07, 3 October 2013, the Court already found a violation in respect of issues similar to those in the present case.

10. Having examined all the material submitted to it, the Court has not found any fact or argument capable of persuading it to reach a different conclusion as to the admissibility and merits of these complaints. Having regard to its case-law on the subject, the Court considers that in the instant case the interferences with the applicants' freedom of assembly were not "necessary in a democratic society".

11. These complaints are therefore admissible and disclose a breach of Article 11 of the Convention.

IV. OTHER ALLEGED VIOLATIONS UNDER WELL-ESTABLISHED CASE-LAW

12. Some applicants submitted other complaints which also raised issues under the Convention, given the relevant well-established case-law of the Court (see appended table). These complaints are not manifestly ill-founded within the meaning of Article 35 § 3 (a) of the Convention, nor are they inadmissible on any other ground. Accordingly, they must be declared admissible.

13. Having examined all the material before it, the Court concludes that these complaints also disclose violations of the Convention in the light of its findings in *Butkevich v. Russia*, no. 5865/07, §§ 63-65, 13 February 2018, *Tsvetkova and Others v. Russia*, nos. 54381/08 and 5 others, §§ 115-31, 10 April 2018, and *Korneyeva v. Russia*, no. 72051/17, §§ 34-36, 8 October 2019, as to various aspects of unlawful deprivation of liberty of organisers or participants of public assemblies; and *Karelin v. Russia*, no. 926/08, §§ 58-85,

20 September 2016, concerning the absence of a prosecuting party in the proceedings under the Code of Administrative Offences (the CAO).

V. REMAINING COMPLAINTS

14. Some applicants raised further additional complaints under Article 6 of the Convention concerning the fairness of the administrative-offence proceedings. In view of the findings in paragraphs above, the Court considers that there is no need to deal separately with these remaining complaints.

VI. APPLICATION OF ARTICLE 41 OF THE CONVENTION

15. Regard being had to the documents in its possession and to its case-law (see in particular *Navalnyy and Others v. Russia* [Committee], nos. 25809/17 and 14 others, § 22, 4 October 2022), the Court finds it reasonable to award the sums indicated in the appended table.

FOR THESE REASONS, THE COURT, UNANIMOUSLY,

1. *Decides* to join the applications;

2. *Holds* that it has jurisdiction to deal with these applications as they relate to facts that took place before 16 September 2022;

3. *Declares* the complaints under Article 11 of the Convention and the other complaints under the well-established case-law of the Court, as set out in the appended table, admissible, and *finds* that there is no need to examine separately the remaining complaints under Article 6 of the Convention;

4. *Holds* that these applications disclose a breach of Article 11 of the Convention;

5. *Holds* that there has been a violation of the Convention as regards the other complaints raised under the well-established case-law of the Court (see appended table);

6. *Holds*
   (a) that the respondent State is to pay the applicants, within three months, the amounts indicated in the appended table, to be converted into the currency of the respondent State at the rate applicable at the date of settlement;
   (b) that from the expiry of the above-mentioned three months until settlement simple interest shall be payable on the above amounts at a

rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points.

Done in English, and notified in writing on 21 March 2024, pursuant to Rule 77 §§ 2 and 3 of the Rules of Court.

Viktoriya Maradudina Acting Deputy Registrar	Peeter Roosma President

APPENDIX

List of applications raising complaints under Article 11 of the Convention
(disproportionate measures against organisers and participants of public assemblies)

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative / criminal charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
1.	43191/21 11/08/2021	**Ivan Nikolayevich KIRSANOV** 2002	Nurgaleyev Danil Ilnurovich Kazan	Manifestation in support of Navalnyy Kazan, Tatarstan Republic 23/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Supreme Court of the Tatarstan Republic 17/02/2021	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest and detention from 2.30 p.m. on 23/01/2021 to 2 p.m. on 24/01/2021 for the purpose of drawing up an administrative offence record and bringing the applicant to court hearing, raised on appeal	4,000
2.	45710/21 26/08/2021	**Viktoriya Andreyevna KURBATOVA** 1994	Zubarev Dmitriy Vladimirovich Vladivostok	Manifestation in support of Navalnyy Vladivostok 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 15,000	Primorye Regional Court 20/05/2021	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest and detention from 2.30 p.m. to 8 p.m. on 31/01/2021 for the purpose of drawing up an administrative offence record, raised on appeal, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - Final decision: Primorye Regional Court, 20/05/2021	4,000
3.	45886/21 25/08/2021	**Andrey Valentinovich ZELENOV** 1975	Bubon Konstantin Vladimirovich Khabarovsk	Manifestation in support of Furgal and Navalnyy Khabarovsk 23/01/2021	article 20.2 § 6.1 of CAO	fine of RUB 15,000	Khabarovsk Regional Court 18/03/2021	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest and detention from 3.20 on 23/01/2021 to 25/01/2021 for the purpose of drawing up an administrative offence record and bringing the applicant to court hearing, raised on appeal	4,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative / criminal charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
4.	47509/21 03/09/2021	**Anton Aleksandrovich SUKHANOV** 1993	Vertegel Feliks Yevgenyevich Krasnodar	Manifestation in support of Navalnyy Krasnodar 23/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Krasnodar Regional Court 15/03/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - Final decision: Krasnodar Regional Court, 15/03/2021	3,500
5.	47833/21 18/09/2021	**Aleksandr Pavlovich SMIRNOV** 1987	Nemanov Vladimir Sergeyevich Moscow	Manifestation in support of Navlanyy Moscow 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 06/04/2021	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest and detention from 5.30 p.m. on 31/01/2021 to about 1.30 a.m. on 01/02/2021 for the purpose of drawing up an administrative offence record, raised on appeal, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - Final decision: Moscow City Court, 06/04/2021	4,000
6.	48934/21 24/09/2021	**Yelena Aleksandrovna PIROGOVA** 1960	Zhdanov Ivan Yuryevich Vilnius	Manifestation in support of Navalnyy Staryy Oskol 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Belgorod Regional Court 29/03/2021	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest and detention from 12.30 p.m. to 7 p.m. on 31/01/2021 for the sole purpose of drawing a record of administrative offence, raised on appeal, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - Final decision: Belgorod Regional Court, 29/03/2021	4,000
7.	49150/21 16/09/2021	**Yuliya Sergeyevna DEMIDOVA** 1997	Yatsenko Irina Aleksandrovna Moscow	Manifestation in support of Navalnyy Moscow 31/01/2021	article 20.2 § 6.1 of CAO	fine of RUB 10,000	Moscow City Court 16/03/2021	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest and detention from 12 p.m. on 31/01/2021 to 9.30 p.m. on 01/02/2021 for the purpose of drawing up an administrative offence record and bringing the applicant to court hearing, raised on appeal,	4,000

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								Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - Final decision: Moscow City Court, 16/03/2021	
8.	49272/21 22/09/2021	**Aleksandr Vladimirovich VOLKOV** 1991	Aksenova Darya Dmitriyevna Kolomna	Manifestation in support of Navalnyy Moscow 23/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 22/04/2021	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest and detention from 12.09 p.m. until unspecified time on 23/01/2021 (more than three hours) for the sole purpose of drawing up an administrative offence record, raised on appeal, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - Final decision: Moscow City Court, 22/04/2021	4,000
9.	49428/21 01/10/2021	**Igor Olegovich YERMACHENKOV** 1963	Zhdanov Ivan Yuryevich Vilnius	Manifestation in support of Navalnyy Arkhangelsk 23/01/2021	article 20.2 § 5 of CAO	fine of RUB 15,000	Arkhangelsk Regional Court 09/04/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - Final decision: Arkhangelsk Regional Court, 09/04/2021	3,500
10.	49437/21 01/10/2021	**Artur Arturovich SIDOROV** 1992	Pomazuyev Aleksandr Yevgenyevich Vilnius	Manifestation in support of Navalnyy Yaroslavl 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Yaroslavl Regional Court 08/04/2021	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest and detention from 12.20 p.m. to 7 p.m. on 31/01/2021 for the sole purpose of drawing up an administrative offence record, raised on appeal, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - Final decision: Yaroslavl Regional Court, 08/04/2021	4,000

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11.	51211/21 30/09/2021	**Irada Nazimovna KAMINSKAYA** 1972	Dubrovina Marina Alekseyevna Novorossiysk	Manifestation in support of Navalnyy Anapa, Krasnodar Region 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 12,000	Krasnodar Regional Court 31/03/2021	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest and detention from 1.10 p.m. to 8.30 p.m. on 31/01/2021 for the sole purpose of drawing up an administrative offence record and bringing the applicant to the court hearing, raised on appeal, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - Final decision: Krasnodar Regional Court, 31/03/2021	4,000
12.	51498/21 28/09/2021	**Vladimir Vladimirovich KALASHNIKOV** 1982	Aksenova Darya Dmitriyevna Kolomna	Manifestation in support of Navalnyy Moscow 23/01/2021	article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 20/04/2021	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest and detention from 2.10 p.m. to unspecified time on 23/01/2021 for the sole purpose of drawing a record of administrative offence, raised on appeal, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - Final decision: Moscow City Court, 20/04/2021	4,000
13.	51504/21 28/09/2021	**Yuriy Vladimirovich ZAYTSEV** 1962	Aksenova Darya Dmitriyevna Kolomna	Manifestation in support of Navalnyy Moscow 23/01/2021	article 20.2 § 6.1 of CAO	fine of RUB 15,000	Moscow City Court 13/05/2021	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest and detention from 6.25 p.m. to unspecified time on 23/01/2021 for the sole purpose of drawing up a record of administrative offence, raised on appeal, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - Final decision: Moscow City Court, 13/05/2021	4,000

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14.	51701/21 05/10/2021	**Maksim Yuryevich TARASOV** 1998	Valenkov Andrey Olegovich Nizhniy Novgorod	Manifestation in support of Navalnyy Nizhniy Novgorod 31/01/2021	article 20.2 § 6.1 of CAO	fine of RUB 10,000	Nizhniy Novgorod Regional Court 07/04/2021	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest and detention from 12.25 p.m. on 31/01/2021 to 3.30 p.m. on 01/02/2021 for the sole reason of drawing up an administrative offence record and bringing the applicant to the court hearing, raised on appeal, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - Final decision: Nizhniy Novgorod Regional Court, 07/04/2021	4,000
15.	51790/21 15/10/2021	**Anastasiya Igorevna RODIONOVA** 1992	Zhdanov Ivan Yuryevich Vilnius	Manifestation in support of Navalnyy Saransk 23/01/2021	article 20.2 § 6.1 of CAO	fine of RUB 10,000	Supreme Court of the Republic of Mordovia 28/04/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - Supreme Court of the Mordovia Republic, 28/04/2021	3,500
16.	51936/21 15/10/2021	**Yana Valeryevna FOMINA** 1994	Zhdanov Ivan Yuryevich Vilnius	Manifestation in support of Navalnyy Kursk 23/01/2021	article 20.2 § 5 of CAO	fine of RUB 15,000	Kursk Regional Court 27/04/2021	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest and detention from 2.55 p.m. to 7.15 p.m. on 23/01/2021 for the sole purpose of drawing up an administrative offence record, raised on appeal, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - Final decision: Kursk Regional Court, 27/04/2021	4,000
17.	52341/21 01/10/2021	**Darina Ruslanovna PRAZDNIKOVA** 2002	Nurgaleyev Danil Ilnurovich Kazan	Manifestation in support of Navalnyy Kazan 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Supreme Court of Tatarstan Republic 21/04/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - Final decision: Supreme Court of Tatarstan Republic, 21/04/2021	3,500

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18.	53163/21 23/09/2021	**Yan Vladimirovich KOLCHANOV** 1983	Bushmakov Aleksey Vladimirovich Yekaterinburg	Manifestation in support of Navalnyy Yekaterinburg 23/01/2021	article 20.2 § 5 of CAO	20 hours of community service	Sverdlovsk Regional Court 13/05/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - Final decision: Sverdlovsk Regional Court, 13/05/2021	3,500
19.	53169/21 23/09/2021	**Aleksey Vladimirovich CHELYSHEV** 1995	Bushmakov Aleksey Vladimirovich Yekaterinburg	Manifestation in support of Navalnyy Yekaterinburg 23/01/2021	article 20.2 § 5 of CAO	20 hours of community service	Sverdlovsk Regional Court 09/06/2021	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest and detention from 3.27 p.m. to unspecified time on 23/01/20201 for the sole purpose of drawing a record of administrative offence, raised on appeal, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - Final decision: Sverdlovsk Regional Court, 09/06/2021	4,000
20.	53174/21 23/09/2021	**Timofey Vasilyevich RADYA** 1988	Bushmakov Aleksey Vladimirovich Yekaterinburg	Manifestation in support of Navalnyy Yekaterinburg 23/01/2021	article 20.2 § 5 of CAO	39 hours of community service	Sverdlovsk Regional Court 13/07/2021	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest and detention from 3.27 p.m. to unspecified time on 23/01/20201 for the sole purpose of drawing a record of administrative offence, raised on appeal, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - Final decision: Sverdlovsk Regional Court, 13/07/2021	4,000
21.	57560/21 07/11/2021	**Mukhamad Amridin SIRIDZHIDINZODA** 1999	Zboroshenko Nikolay Sergeyevich Mytishchi	Manifestation in support of Izzat Amon Moscow 02/04/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 13/07/2021	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest and detention from 2 p.m. to unspecified time on 02/04/2021 for the sole purpose of drawing a record of administrative offence, raised on appeal, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - Final decision: Moscow City Court, 13/07/2021	4,000

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22.	51290/22 22/10/2022	**Rustem Rinatovich NABIULLIN** 1996		Manifestation against the war in Ukraine Kazan 13/03/2022	article 20.2 § 5 of CAO article 20.3.3 of CAO, § 1	fine of RUB 10,000 fine of RUB 30,000	Supreme Court of the Tatarstan Republic 22/06/2022 Supreme Court of the Tatarstan Republic 06/07/2022	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest and detention from 2.30 p.m. on 13/03/2022 to 14/03/2022 for the sole purpose of drawing up an administrative offence record and bringing the applicant to court hearing, raised on appeal	4,000

[1] Plus any tax that may be chargeable to the applicants.